Rancho Moonrise

Rancho Moonrise | (737) 291-1260 | events@ranchomoonrise.com
20117 Lockwood Road, Manor, TX, 78653
www.ranchomoonrise.com

To make things official, please review and sign the agreement below. If you have any questions along the way, please reach out. We want to ensure you have all the information you need.

AGREEMENT FOR THE USE OF RANCHO MOONRISE

EVENT NAME: Adam Styer Test

CLIENT NAME: Adam Styer

EMAIL: styer.adam@gmail.com

PHONE: Client Phone Number

WEDDING PLANNER: Planner Organization Name

WEDDING PLANNER EMAIL: Planner Phone Number

WEDDING PLANNER PHONE: Planner Phone Number

GUEST COUNT: Guest Count

TERMS AND CONDITIONS

These Terms and Conditions apply to and are a part of the Agreement hereinafter referred to as the "Contract" by and between Rancho Casa Amigos, LLC, d/b/a and hereafter referred to as "Rancho Moonrise" and the party executing this contract, referred to as "the Client" for the use of the Premises (as defined below) for a private event planned by Client.

This Contract is between Adam Styer (Client) and Rancho Moonrise for a wedding on XXX at the price of XXX + tax.

1. DESCRIPTION OF PREMISES:

The Premises, known as Rancho Moonrise is a unique property, commonly known as 20117 Lockwood Road Manor, Tx. 78653, consisting of approximately 36 acres and consists of a lodge, pool area, event barn, Neon Moon bar and lounge, corral, 6 cabins with electricity and 14 safari tents with electricity.

Use of retail and back office space in the lodge, and locked storage rooms are not available to any Client or event attendee and are not included in any private or public event contract. Client Initials The lodge is open 11 AM - 9 PM. The Bridal Suite is open 11 AM - 11 PM, all items must be removed from the bridal suite by 11 PM when it locks.

Several parts of the venue are accessible for mobility impaired and in compliance with the Americans with Disabilities Act of 1990 ("ADA"). Client is responsible to inform Rancho Moonrise of any special requirements concerning Client's invitees one month prior to the event date. Rancho Moonrise will comply as necessary provided the cost of any improvements or changes is reasonable. Client is responsible to inform Rancho Moonrise of any special requirements as soon as possible and not less than 7 days prior to the event. Rancho Moonrise is made up of grass, loose dirt, gravel and stone. Light strollers can make it through but wheelchairs have proven difficult to maneuver through the gravel. Please plan accordingly.

Any displays, exhibits, or decorations used by the Client in connection with the event must be free standing and not attached to any wall, ceiling or floor, plant, and in full compliance with all applicable safety rules and regulations. Nothing can be attached to the wood in the corral.

2. CAPACITY AND FIRE SAFETY:

Rancho Moonrise abides by Travis County fire code. The capacity of Rancho Moonrise, or any individual area, may not be exceeded under any circumstance. Rancho Moonrise enforces fire protection safety codes and is subject to inspection. All fire exits must be kept clear. Overcrowding may lead to a surcharge added to the final bill. Client will, at all times, comply with all rules, regulations, and safety codes applicable to the event. No open flames or open flame devices are permitted at Rancho Moonrise.

3. EVENT PLANNING AND VENDOR REQUIREMENTS:

At certain times, Rancho Moonrise will provide an on-site manager to oversee the property, answer questions, and act as a point person for the venue. The Rancho Moonrise staff DOES NOT act as an event coordinator prior to the event, or on the day of the event.

Rancho Moonrise requires an insured wedding planner for all weddings. All wedding planners must meet Rancho Moonrise management on site, in person, and be approved for the wedding if they have not worked with Rancho Moonrise before. The Client must submit name and contact information for the wedding planner as soon as possible, but no less than ninety (90) days prior to the event date. The Client must submit the wedding planners insurance along with that information. In addition, the wedding planner or a representative on their behalf must be present whenever vendors are on the property unless otherwise approved by Rancho Moonrise.

Client is responsible for providing hired planners with all current guidelines and requirements provided by Rancho Moonrise. Client is also solely responsible for planners and vendors abiding by Rancho Moonrise policies (PLEASE SEE CURRENT VENDOR POLICIES PROVIDED BY RANCHO MOONRISE).

Rancho Moonrise allows outside catering. All caterers must meet Rancho Moonrise management on site, in person, and be approved for the wedding if they have not worked with Rancho Moonrise before. All caterers must provide proof of liability insurance 60 days before the event.

It is the sole responsibility of vendors to secure any and all permitting necessary for events. Rancho Moonrise is subject to inspections and is not responsible for any permitting issues whatsoever.

4. ALCOHOLIC BEVERAGE POLICY:

All alcohol must be purchased through Rancho Moonrise and served by TABC Certified bartenders. Rancho Moonrise has a strict no shot policy during all events. All beverages must be canned or in a plastic cup, no glass bottles or cups allowed.

Rancho Moonrise does not allow outside alcohol to be consumed prior to the event start time. All alcohol consumed prior to event start time must be purchased through Rancho Moonrise.

Rancho Moonrise staff reserves the right to ask any guest to leave the premises if excessive consumption of alcoholic beverages (prior to or during the event) provides a safety hazard for other guests or the property of Rancho Moonrise. The determination of excessive consumption of alcoholic beverages shall be in the sole discretion of Rancho Moonrise staff. The Client will not be entitled to any refund and will pay any remaining balance in full. If the Client and guests are asked to leave the premises prior to the contracted end time, the Client will be required to pay any remaining balance in full.

If guests are staying overnight after an event, after hour canned items may be purchased in advance.

5. CLEAN UP/MAINTENANCE FEES:

The Client is responsible for the condition of the premises and must leave the premises in the same condition as on arrival. Client is responsible for removing **all trash and debris** from the premises at the end of the event, including all set-up items and supplies. There is no dumpster on site at Ranch Moonrise. If the client's caterers, vendors or planning team are unable to remove the trash, the client will be responsible to do so. If trash is not removed, Rancho Moonrise will charge a $300 dump fee. Rancho Moonrise will contract and arrange for the cleaning services for all events and an applicable one-time cleaning fee will be applied if the property is not left in the same condition as it was on arrival.

Rancho Moonrise is a non-smoking facility.

6. DAMAGE TO THE PREMISES:

The Client is responsible for all damages to the premises caused by or as a direct result of the actions of by Client, or any guest, invitee, servant, employee, or agent of Client or any independent contractor hired by Client. Client is responsible for lost revenues attributable to the need to close all or any part of the premises to repair damages for which Client is responsible. Damages and costs associated shall be determined based upon the reasonable discretion of Rancho Moonrise.

Client will provide a $1,000 refundable damage deposit at the time of the booking. The damage deposit will be refunded in full less than fourteen (14) days after the event provided there are no damages to the property or additional charges to Client. In the event the damages exceed $1,000, Client will be billed for excess.

7. SOUND AND AMPLIFIED MUSIC:

Any amplified outdoor music (live or DJ) must end by 11pm on Friday and Saturday nights, by 9pm Monday through Thursday, and by 8pm on Sundays. All music must be at a decibel level of 80 or lower. In addition, entertainers may not amplify bass.

8. RAIN PLAN AND TENTING:

Tenting at Clients discretion and the Event Barn shall be made available in the event of rain.

9. WATER AND POWER:

All drinking water must be provided by Client or Client's caterers.

Rancho Moonrise provides access to ample electricity. It is Client's responsibility to discuss all event power requirements at site meeting prior to the event date. If additional electricity is needed, it is Client's responsibility to procure a generator.

10. ADVERTISING:

Under the terms of this contract, the Client may not advertise the event in a public forum, or sell tickets to the event to the general public without prior approval in writing by Rancho Moonrise. During private events, Rancho Moonrise assumes no liability for attendance and is not responsible for advertising or promoting a private event.

11. HOLDS AND BOOKING CONFIRMATION:

Verbal holds are not accepted. Rancho Moonrise will provide a written event order to tentatively hold a requested date and time. Rancho Moonrise requires a signed contract, a 50% deposit, and a refundable $1,000 damage deposit to confirm a tentative hold.

12. SHIPPING AND RECEIVING:

Advanced delivery of materials or packages will be accepted by Rancho Moonrise no more than two (2) days before the event and deliveries must be coordinated with Rancho Moonrise. We will not assume liability for loss or damage for any items shipped by or received from the Client.

13. SAFETY, SECURITY, AND PARKING:

Rancho Moonrise is not responsible for any lost, stolen, or damaged property of the Client, or any guest, invitee, servant, employee, or agent of Client or any independent contractor hired by Client.

For the safety of Client's guests and the grounds at Rancho Moonrise, absolutely no unattended children are permitted at any event. If unattended children are found, they will be escorted back to their guardian by security. Because of the rugged landscape and pool, attendance of young children after the ceremony is discouraged. **THERE WILL BE NO LIFEGUARD ON DUTY AND THE SAFETY AND CARE OF ANY CHILD USING THE POOL SHALL BE THE RESPONSIBILITY OF THE CLIENT AND/OR THE CHILD'S PARENTS.** Depending on the number and ages of children attending, additional security or childcare may be required. Speak with Rancho Moonrise Management for more details. The pool entry gates will lock at pool closing. If guests jump over the gates once they are locked, there will be a $500 fine. We have security cameras on the property. First Client Initials

There will be no glass at or near the pool and all drink containers shall be made of plastic. There is a $50 per pet fee. No pets allowed in the pool area, Event Barn or Lodge.

In addition, Rancho Moonrise requires a security officer on site for all events during active event hours. This service is provided by Manor Police Department or a private security company and will be scheduled by Rancho Moonrise for a fee of $300. One security guard covers up to 200 guests. More than 200 guests, additional security guards will be required at a $300 fee per guard to the client.

Clients hosting events expecting more than 75 vehicles are required to provide shuttle service if necessary.

Please note, Rancho Moonrise is a smoke free and firearm free facility. Clients and guests will not be allowed to bring firearms onto Rancho Moonrise grounds. No exceptions will be made for Clients wanting photographs with firearms.

In addition, Rancho Moonrise does not allow fireworks or open flames at any time. If there is no fire ban in place on the date of the wedding, Rancho Moonrise will discuss use of fire pits with Client. Sparklers are permitted in certain areas based on approval from Rancho Moonrise. Please inquire for details.

Use of illegal substances or firearms in any part or area Rancho Moonrise by Client, or any guest, invitee, servant, employee, or agent of Client or any independent contractor hired by Client will result in automatic forfeiture of event in its entirety including all payments made, that Client has actual knowledge of, however client contractually agrees to notify all guests and invitees or agents of client, that illegal substances and firearms are strictly prohibited.

14. CANCELLATION:

If after signing the contract, the Client cancels the event ninety (90) days or more prior to the event date, the 50% venue deposit, tax and damage deposit will be maintained by Rancho Moonrise and the bar package minimum will be returned to the Client. If the Client cancels the event less than ninety (90) days prior to the event date, the Client is responsible for the entire venue rental amount.

15. RIGHT OF TERMINATION:

Rancho Moonrise may terminate the event at any time if Rancho Moonrise determines, in its sole discretion, that the venue is not in compliance with applicable law or otherwise unsuitable for the event. If Rancho Moonrise terminates an event, for the above reason the Client is entitled to a refund, in full, of the security deposit as its sole remedy. Rancho Moonrise will not be responsible or liable for any costs, expenses, or damages to Client by reason of any termination in accordance with this contract. Rancho Moonrise reserves the right to deny services to any Client at any time if it is determined, in its sole discretion, that the Client poses a liability to the property or staff of Rancho Moonrise.

16. PAYMENT POLICY:

Unless other payment terms are agreed upon in writing, as a condition to accepting and booking an event, applicants must provide one-half (1/2) of quoted venue fee + tax by check, cash, or wire transfer on the day of the booking, as well as a $1,000 refundable damage deposit. The remaining venue fee balance + tax is due 90 days prior to the event date. The Bar Package minimum is due 30 days after signing the contract. Final headcount, remaining bar balance and 20% gratuity is due 14 days before the event date. Please note, late payments will be charged a late fee of $50 per day or the event can be subject to cancellation on the sole discretion of Rancho Moonrise in which case Rancho Moonrise shall be entitled to retain all monies previously paid by Client.

17. ACTUAL TIME USED:

Unless otherwise agreed to in writing on formal estimate, all contracted events start at 11:00AM the day of the event. Formal event must end by 11:00PM day of the event Friday and Saturday, or 10PM Monday - Thursday and 8PM Sundays. Contracted hours include set-up and break down. All vendors must be completely broken down and exit the property no later than the end time.

Vendors are allowed to arrive at 11:00AM day of the event, wedding party can arrive at 11:00AM day of the event, and overnight guests staying in cabins and safari tents check in at 3:00PM. Access to the one bridal suit dressing room in the Lodge begins at 11:00AM. Access to the one included Safari Tent for the wedding party will be available at 11:30AM (if available at 11:00AM Rancho Moonrise will notify the client of early access) the day of the event.

Client's event may not extend beyond contracted beginning and end times without the prior consent of Rancho Moonrise, which may be granted or withheld in its sole discretion. Client may purchase additional hours or days for set-up in advance at a price agreed to in writing between Client and Rancho Moonrise. If Client's event or vendors exceed the contracted time, either at the actual event, or in advance set-up time, Client will be charged $500 per hour.

If Client purchases additional set-up time in advance and vendors remain on the property past contracted time, Client will be charged for the additional hours separately.

It is the Client's responsibility to clearly communicate contracted event times to all vendors.

18. SUB-LET, SUB-CONTRACT:

Client shall not sub-let, sub-contract, resell, assign, or license usage of Rancho Moonrise to any other person or company for any period during the contract usage without written consent for a representative of Rancho Moonrise, which consent may be conditioned on the payment of an additional fee or charge in the sole discretion of Rancho Moonrise.

19. INDEMNITY AND INSURANCE:

Client agrees to protect, indemnify, defend, and hold harmless Rancho Moonrise, its owners, subsidiaries, affiliates, officers, directors, employees, and agents against all claims, losses, or damage to persons or property, government charges, fines, and costs (including reasonable attorney's fees) arising out of or related to the use of the premises, or any part thereof, by Client, or any guest, invitee, servant, employee, or agent of Client or any independent contractor hired by Client, except those claims arising out of sole negligence or willful misconduct of Rancho Moonrise. In no event shall either party be liable to the other for indirect, incidental or consequential damages, whether based on tort, breach of contract, warranty, or otherwise. In no event shall Rancho Moonrise liability be in excess of the total amount of the charges paid by the Client hereunder.

Unless other insurance requirements are specified with the prior written consent of Rancho Moonrise, Client will obtain and supply event insurance for a minimum of $1,000,000, at Client's cost, and provide a certificate of insurance to Rancho Moonrise at least fifteen (15) days prior to the date of the event with Rancho Casa Amigos, LLC DBA Rancho Moonrise as an additional insured.

Rancho Moonrise is not responsible for loss of or damage to any property that is delivered or addressed to Client, Client's guests, agents, servants, employees or invitees or which Client, Client's guests, agents, servants, employees or invitees bring to Rancho Moonrise or leave at Rancho Moonrise, before, during, or after the use of the facilities, it being agreed by Client that such property is not under care, custody, or control of Rancho Moonrise.

20. FORCE MAJEURE/IMPOSSIBILITY:

Either party may be excused from its obligations to perform under this Agreement in the event that acts of God, war, government regulation, riots, disasters or strikes renders such performance objectively impossible or illegal. In the event that at the time of the Force Majeure Clause, Rancho Moonrise has incurred expenses, which under the Agreement are the responsibility of the Client, then for the period of use until the time of termination, and to the extent Rancho Moonrise has incurred such expenses, Client shall be liable to Rancho Moonrise, unless Rancho Moonrise waives reimbursement.

21. MODIFICATION:

The terms and conditions of this contract may be modified in writing only, signed by an authorized representative of Rancho Moonrise and Client.

22. ARBITRATION:

In the event of a dispute between the parties arising out of this Contract, including, but not limited to Federal or State statutory claims, the parties sole recourse (except as provided below) shall be to arbitrate. Proceedings shall be conducted under the rules of the American Arbitration Association (AAA). The decision of the arbitrator(s) shall be binding and final and the award of the arbitrator(s) may be entered as judgment in Travis County, Texas. The prevailing party shall be entitled to recovery of costs, expenses, and reasonable attorneys' fees as well as those incurred in any action for injunctive relief, or in the event further legal action is taken to enforce the award of the arbitrator(s). Arbitration proceedings shall be conducted at the office of AAA nearest Travis County, Texas.

23. SEVERABILITY:

The partial or complete invalidity of any one or more provisions of this Agreement shall not affect the validity or continuing force and effect of any other provision.

24. BREACH OF CONTRACT:

If Client fails to pay when due any amount owing under this agreement and that failure continues for five (5) Business Days, Rancho Moonrise may terminate this agreement, with immediate effect, by giving Notice to the Client and Rancho Moonrise shall be entitled to retain any payments previously made.

If Client commits any material breach or material default in the performance of any obligation under this agreement and the breach or default continues for a period of five (5) Business Days after the other party delivers Notice to it reasonably detailing the breach or default, Rancho Moonrise may terminate this agreement, with immediate effect, by giving Notice to the Client and Rancho Moonrise shall be entitled to retain any payments previously made.

If event has already taken place and Client commits any material breach or material default in the performance of any obligation under this agreement, all payments made will be forfeited by Client.

ACKNOWLEDGMENT:

I ACKNOWLEDGE RECEIPT OF THE ABOVE TERMS AND CONDITIONS PROVIDED BY RANCHO MOONRISE AND I AGREE TO COMPLY WITH THEM

Rancho Moonrise

events@ranchomoonrise.com

* Signature required

Adam Styer

styer.adam@gmail.com

* Signature required